

and criminal matter in Santa Cruz County arise from the same operative factual allegations. Parties stipulate that a transfer to Santa Cruz County will have no adverse inference or legal consequences. (Exhibit A, at p. 4).

The Court finds that Santa Cruz County is the proper venue for this action. The parties stipulate that all parties either reside or conduct business in Santa Cruz County. Moreover, the underlying factual allegations occurred in Santa Cruz County. Criminal charges arising from the same operative facts were filed in Santa Cruz in docket 24CR02808.

IV. CONCLUSION

Based on the foregoing, the stipulated motion to change venue in this action to Santa Cruz County is GRANTED. The Court will prepare the formal order.

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Calendar Line # 7
Case Name Adelita Mendez Gonzalez vs Costco Wholesale Corporation et al
Case No. 25CV474250
Motion to Disqualify Plaintiff's Law Firm I. <u>BACKGROUND</u> This case stems from a personal injury, slip and fall incident at Costco warehouse. On September 3, 2025, Plaintiff Adelita Mendez Gonzalez ("Gonzalez") alleges two causes of action including: (1) motor vehicle accident general negligence, and (2) premises liability. Defendant Costco Wholesale Corporation, a Washington Corporation ("Costco"). Before the Court is Defendant Costco's motion to disqualify Plaintiff's counsel, Downtown L.A. Group ("DTLA") based on one its attorneys Anthony Werbin ("Werbin"). From approximately July 2017 to January 2020, Mr. Werbin previously worked as an associate at Manning & Kass, Elrod, Ramirez, Trester LLP ("M&K"), which was one of the firms that Costco retained to defend in claims, including personal injury suits. (Declaration of Werbin ¶ 3). It is undisputed that Mr. Werbin represent Costco in any matters previously involving Plaintiff Gonzalez. (Defendant's memorandum of points and authorities ("MPA"), p. 4). Defendant Costco seeks to disqualify DTLA claiming vicarious conflict and fruits of the poisonous tree (Defendant's notice, p. 1). The motion was filed on January 9, 2026 and accompanied by a proof of service indicating electronic mail service on the plaintiff's counsel. Plaintiff filed opposition briefs on August 20, 2026. Defendant filed a reply brief on August 20. The Court has carefully reviewed the following: notice of motion (totaling 3 pages); MPA (totaling 12 pages); Declaration of Leigh Ann Rujiters (totaling 4 pages); Declaration of Matthew C. Jaime (totaling 3 pages); Judicial Notice and Exhibits A-C (totaling 23 pages); Opposition to the motion to disqualify (totaling 12 pages); opposition for request for notice (totaling 4 pages); Declaration of Arlen Khachatourians (totaling 28 pages); and Declaration of Anthony Werbin (totaling 5 pages); Reply brief (totaling 11 pages); proofs of services; and the pleadings. II. <u>PROCEDURAL MATTERS</u> A. <u>UNTIMELY OPPOSITION</u> The Court notes procedural violation by the plaintiff. Plaintiff filed opposition papers on August 20, 2026. Per Code of Civil Procedure section 1005(b) opposition papers were to be filed by August 19, 2026. The papers are late. California Rules of Court, rule 3.1300, subdivision (d) states, "No paper may be rejected for filing on the ground that it was untimely submitted for filing. If the court, in its discretion, refuses to consider a late filed paper, the minutes or order must so indicate." Here, the Court balances the totality of circumstances, including judicial economy to avoid the expenditure of any further judicial resources, the court will look past the procedural violations and consider the motion and opposition on its merits. However, the plaintiff is hereby admonished to comply with Rule of Court and Code of Civil Procedure. Any future violations may result in the court's refusal to consider untimely filed papers. B. <u>REQUEST FOR JUDICIAL NOTICE</u> Under Evidence Code section 452(c)-(d), the court may take judicial notice of court records and actions of the state. Here, Plaintiff requests that the court takes judicial notice of three exhibits: Exhibit A is an Order by the Honorable Serena R. Murillo from Los Angeles County Court in the matter of Alba Cochran vs. Costco Wholesale Corporation (BC708124) Court dated October 25, 2021; Exhibit B is an Order by the Honorable Anthony Mohr